

IRAN 2014 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The Islamic Republic of Iran is a theocratic republic with a constitution that created a political system based on the concept in Shia Islam of velayat-e faqih (“guardianship of the jurist” or “rule by the jurisprudent”). Shia clergy – most notably the “supreme jurisprudent” (or supreme leader) and political leaders vetted by the clergy – dominated key power structures. While mechanisms for popular election existed within the structure of the state, the supreme leader held significant influence over the legislative and executive branches of government (through various unelected councils under his authority) and held constitutional authority over the judiciary, the state-run media, and the armed forces. The supreme leader also indirectly controlled the internal security forces and other key institutions. Since 1989, the supreme leader has been Ayatollah Ali Khamenei. In June 2013 Hassan Rouhani won the election for president with more than 50 percent of the vote. Despite high popular participation in the election following open debates, candidate vetting by unelected bodies based on arbitrary criteria, as well as restrictions on the media, limited the freedom and fairness of the election. Authorities maintained effective control over the security forces.

The most significant human rights problems were severe restrictions on civil liberties, including the freedoms of assembly, speech, religion, and press; limitations on the citizens’ ability to change the government peacefully through free and fair elections; and disregard for the physical integrity of persons, whom authorities arbitrarily and unlawfully detained, tortured, or killed.

Other reported human rights problems included: disappearances; cruel, inhuman, or degrading treatment or punishment, including judicially sanctioned amputation and flogging; politically motivated violence and repression; harsh and life-threatening conditions in detention and prison facilities, with instances of deaths in custody; arbitrary arrest and lengthy pretrial detention, sometimes incommunicado; continued impunity of the security forces; denial of fair public trial, sometimes resulting in executions without due process; the lack of an independent judiciary; political prisoners and detainees; ineffective implementation of civil judicial procedures and remedies; arbitrary interference with privacy, family, home, and correspondence; severe restrictions on freedoms of speech (including via the internet) and press; harassment and arrest of journalists; censorship and media content restrictions; severe restrictions on academic freedom; severe restrictions on the freedoms of assembly and association; some restrictions on freedom of

movement; official corruption and lack of government transparency; constraints on investigations by international and nongovernmental organizations (NGOs) into alleged violations of human rights; legal and societal discrimination and violence against women, ethnic and religious minorities, and lesbian, gay, bisexual, and transgender (LGBT) persons based on perceived sexual orientation and gender identity; incitement to anti-Semitism; trafficking in persons; and severe restrictions on the exercise of labor rights.

The government took few steps to investigate, prosecute, punish, or otherwise hold accountable officials, whether in the security services or elsewhere in the government, who committed abuses. Impunity remained pervasive throughout all levels of the government and security forces.

Note: This report draws heavily on non-U.S. government sources. The United States does not have an embassy in Iran.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

The government and its agents reportedly committed arbitrary or unlawful killings, including, most commonly, by execution after arrest and trial without due process. The government made few and limited attempts to investigate allegations of deaths that occurred after or during reported torture or other physical abuse or after denying detainees medical treatment. Members of ethnic minority communities were disproportionately victims of such abuses.

There were numerous reports that the government or its agents committed arbitrary or unlawful killings. The government executed 721 persons during the year, according to the NGO Iran Human Rights Documentation Center (IHRDC), which reported that many trials did not adhere to basic principles of due process. The government officially announced 268 executions but for many did not release further information, such as the dates of executions, the names of those executed, or the crimes for which they were executed.

The law provides for the death penalty in offenses such as “attempts against the security of the state,” “outrage against high-ranking officials,” “enmity towards God” (moharebeh), “corruption on earth” (fisad fil-arz), and “insults against the memory of Imam Khomeini and against the supreme leader of the Islamic Republic.” Prosecutors frequently used moharebeh as a criminal charge against

political dissidents and journalists, accusing them of struggling against the precepts of Islam and against the state that upholds those precepts. In his August 27 report to the UN General Assembly, Ahmed Shaheed, the UN special rapporteur on the situation of human rights in Iran, reported that authorities executed four cultural-rights activists from the Arab minority community during the year: Hashem Sha'abani, Hadi Rashedi, Ali Chebeishat, and Khaled Mousavi. At least two of the activists, Sha'abani and Rashedi, were executed on charges that included "enmity towards God" and "corruption on earth," according to the Oslo-based human rights NGO, Iran Human Rights (IHR). On November 24, the Supreme Court upheld the death sentence of the blogger Soheil Arabi for "insulting the prophet" (sabb al-nabi) on Facebook, according to Human Rights Watch. The Islamic Revolutionary Guard Corps (IRGC) arrested Arabi in November 2013.

The law does not stipulate the death penalty for apostasy or heresy, but courts handed down capital punishments in prior years based on their interpretation of fatwas (legal opinions or decrees handed down by an Islamic religious leader). According to a September 26 report by Human Rights Activists News Agency (HRANA), a press association of activists, officials at Rajai Shahr Prison stated that authorities executed Mohsen Amir Aslani on September 24 on charges that included "heresy in religion." Tehran judiciary head Gholam-hossein Esmaeili denied that Aslani's execution was tied to the heresy charge and claimed it was for a rape conviction. Human rights groups challenged Esmaeili's claim and called for an independent investigation.

In his March 13 report to the UN General Assembly, the UN special rapporteur reported that the penal code retained the death penalty for consensual same-sex sexual activity. On August 6, the Fars Province Judiciary website reported that authorities executed two men on sodomy charges (see section 6, Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity). The penal code considers adultery, drug possession and trafficking, and recidivist alcohol use to be capital offenses.

There were also deaths in custody. HRANA reported that, on February 20, prison officials found Ali Naroui dead in Orumiye Central Prison in West Azerbaijan Province. Although the authorities reported he died of natural causes, Naroui's brother reported seeing evidence of torture and bruising on his body. On July 9, the NGO International Campaign for Human Rights in Iran (ICHRI) reported that Mostafa Nosrati, an inmate at Bandar Abbas Central Prison, died on July 2, three days after he sustained injuries and officials denied him transfer to a medical facility.

In his August 27 report, the UN special rapporteur noted that the updated penal code continued to allow for the execution of juvenile offenders. According to a March 5 report by HRANA, on March 3, authorities in Jouybar hanged a man convicted of killing his cousin when the man was 17 years old.

Adultery remained punishable by death by stoning. As in 2013 there were no confirmed reports of death by stoning during the year, although a human rights lawyer who had represented persons sentenced to stoning reported that authorities typically carried out the sentence secretly in prisons or remote areas.

Impunity for past unlawful killings remained a serious problem. Human rights groups, including Human Rights Watch, cited documentation implying that Justice Minister Mostafa Pourmohammadi was involved in the extrajudicial executions of thousands of political dissidents in 1988 and in the killings of several prominent dissident intellectuals in 1998.

There were developments in prior cases, including the investigation of the 2012 death in custody of blogger Sattar Beheshti in Evin Prison. According to an August 9 report by ICHRI, Civil Courts Branch 1075 convicted cyber police interrogator Akbar Taghizadeh for involuntary manslaughter in connection with Beheshti's death following a one-day trial. The lawyer for Beheshti's family objected to the involuntary manslaughter charge, noting that a coroner's report indicated that the interrogator's beatings and the lack of medical care caused Beheshti to die from internal bleeding and lack of oxygen to the brain. An appeals court upheld Taghizadeh's conviction and sentence, which included three years in prison, two years in internal exile, and 74 lashes (see also section 1.d.).

Despite his family's calls for an investigation, there were no reports of an official inquiry into the June 2013 death of labor activist Afshin Osanloo, who died in Shahid Rajaie Prison after reportedly undergoing severe torture.

b. Disappearance

There were reports of politically motivated abductions during the year, all of which were attributed to government officials. The government made no effort to prevent or investigate such acts and meted out no punishment. Plainclothes officials often seized journalists and activists without warning, and government officials refused to acknowledge custody or provide information on them. In other cases,

authorities detained persons incommunicado for lengthy periods before permitting them to contact family members.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibits all forms of torture “for the purpose of extracting confession or acquiring information,” but there were several credible reports that security forces and prison personnel tortured and abused detainees and prisoners. In his October report, the UN special rapporteur cited refugee testimony indicating the widespread use of physical and psychological abuse by authorities to secure confessions.

Commonly reported methods of torture and abuse in prisons included prolonged solitary confinement, threats of rape, sexual humiliation, threats of execution, sleep deprivation, electroshock, burnings, the use of pressure positions, and severe and repeated beatings. There were reports of severe overcrowding in many prisons and repeated denials of medical care for prisoners.

Some prison facilities, including Evin Prison in Tehran, were notorious for cruel and prolonged torture of political opponents of the government. Authorities also allegedly maintained unofficial secret prisons and detention centers outside the national prison system where abuse reportedly occurred. The government reportedly used “white torture,” a type of psychological torture that included extreme sensory deprivation and isolation. According to reports, such treatment was used especially on political prisoners and often in detention centers outside the control of prison authorities, including Ward 209 of Evin Prison, which news organizations and human rights groups reported was controlled by the country’s intelligence services.

The opposition website Kaleme reported that, on March 2, a revolutionary court sentenced student activist Maryam Shafipour to seven years in prison for political activism. According to a relative, authorities tortured and mistreated her in jail.

The government defended its use of flogging and amputation as “punishment,” not torture. Judicially sanctioned corporal punishment included lashings and, for offenses involving multiple thefts, amputations. For example, according to an August 25 report by IHR, authorities in Yazd Province publicly amputated four fingers from the right hand of “M. N.,” a man charged with robbery.

Prison and Detention Center Conditions

Prison conditions reportedly were often harsh and life threatening. There were reports that some prisoners committed suicide as a result of harsh conditions, solitary confinement, and torture to which they were subjected. Prison authorities often refused medical treatment for injuries that prisoners reportedly suffered at the hands of abusers and for illness due to the poor sanitary conditions of prison life. Prisoner hunger strikes in protest of their treatment were common. Prisoners and their families often wrote letters to authorities and, in some cases, to UN bodies to highlight and protest their treatment. The UN special rapporteur reported that authorities sometimes subjected prisoners to threats after accusing them of contacting his office.

Physical Conditions: Based on government data from March, the University of Essex-affiliated International Center for Prison Studies (ICPS) estimated the country's total prison population at 217,851, with approximately 25 percent of the population composed of pretrial detainees, and estimated that 3.5 percent of prisoners were women and 1 percent were minors. The ICPS reported the official prison capacity as 113,000. Overcrowding reportedly forced many prisoners to sleep on floors, in hallways, or in prison yards. There were reports that overcrowding within Evin Prison had worsened over the past year. The prison population appeared stable compared with 2013.

There were reports of juvenile offenders detained with adult offenders. Pretrial detainees occasionally were held with convicted prisoners. Women were held separately from men.

Political prisoners were often held in separate prisons or wards, such as Wards 2A, 209, 240, and 350 of Evin Prison and Ward 8 of Gohardasht Prison, or in solitary confinement for long periods of time. The IRGC reportedly ran Evin Prison's Ward 2A and Gohardasht Prison's Ward 8. Human rights activists and the international media also reported cases of political prisoners confined with accused violent criminals.

Numerous human rights NGOs and opposition websites reported poor prison conditions and mistreatment of prisoners. There were reports of prisoner suicides. On July 9, ICHRI reported that Ehsan Hedayatkar, a prisoner in Bandar Abbas Central Prison's Ward One, who had been arrested on charges of drug possession, took pills and hanged himself. According to a September 15 report by HRANA,

two inmates at Ghezel Hesar Prison committed suicide and two other Ghezel Hesar prisoners attempted suicide during the same week.

During the year several prisoners, especially political prisoners, went on hunger strikes to protest prison conditions. The health of some prisoners on hunger strikes deteriorated quickly. According to a January 7 report by Amnesty International, the health of Kurdish prisoners Jamshid Dehghani, Jahangir Dehghani, Hamed Ahmadi, and Kamal Molayee reached critical condition during their 64-day hunger strike in Ghezel Hesar Prison, during which all four men repeatedly lost consciousness. According to a March 8 Human Rights Watch report, Evin Prison did not provide gynecological services to its female inmates. During the year prison authorities reportedly denied treatment at external facilities for Bahareh Hedayat, a women's and students' rights defender sentenced in 2010, who suffered from serious gynecological problems. There were reports that medical staff at Evin Prison routinely mixed a variety of medications into a common solution, which they distributed to inmates with little regard to individual medical conditions, leading to side effects that included heart attacks. Food at some prisons reportedly had low nutritional value, leading some prisoners to bribe guards for more nutritious alternatives.

On April 17, security officials raided Evin Prison's Ward 350, reportedly beating the political prisoners held there. According to a May 15 report by Amnesty International, the officials, some in plain clothes and wearing masks, assaulted prisoners for several hours, causing injuries that reportedly included loss of hearing, fractures, cuts, and bruises and led to the hospitalization of several prisoners.

According to an October 13 ICHRI report, Omid Kokabee, a postdoctoral student arrested in 2011 during a return visit to the country from his studies overseas and subsequently convicted on charges including "communicating with a hostile government," continued to suffer from health problems including heart, kidney, stomach, and severe dental ailments. Although an October 11 Supreme Court decision rejected the legal basis of Kokabee's prosecution and sentencing, Branch 54 of the Tehran Appeals Court subsequently reaffirmed his 10-year prison sentence.

A dual citizen Christian pastor has been detained in Iran since September 2012 on charges related to his religious beliefs. According to public statements by the pastor's family and international groups, he was not provided adequate medical treatment and his health further deteriorated in 2014.

A dual citizen held in Evin Prison since 2011 and whose “confession” was broadcast by state media during the same year remained in prison at year’s end. According to public statements from his family, he learned in April 2014 that a court had tried him and sentenced him to 10 years in prison. He has been denied access to consular visitation.

Administration: Official public statistics on the prison population were limited. There were no reports on the adequacy of or of any steps to improve recordkeeping or whether the penal system employed prison ombudspersons to respond to complaints. Authorities sometimes used alternatives to incarceration for nonviolent offenders, including probation and travel bans.

Authorities mixed violent and nonviolent offender populations. Prisoners generally had access to visitors weekly, but authorities often revoked this privilege along with telephone and other correspondence privileges. It was not known whether prisoners could practice religions other than Islam while incarcerated. Prisoners were able to submit complaints to judicial authorities, but often faced censorship and retribution for doing so. Authorities did not initiate credible investigations into allegations of inhumane conditions. Families of executed prisoners did not always receive notification of their deaths.

Independent Monitoring: The government did not permit independent monitoring of prison conditions.

d. Arbitrary Arrest or Detention

Although the constitution prohibits arbitrary arrest and detention, they occurred frequently during the year.

Role of the Police and Security Apparatus

Several agencies shared responsibility for law enforcement and maintaining order, including the Ministry of Intelligence and Security (MOIS), law enforcement forces under the Interior Ministry, and the IRGC, which reported to the supreme leader. The Basij, a volunteer paramilitary group with local organizations in cities and towns across the country, sometimes acted as an auxiliary law enforcement unit subordinate to Revolutionary Guard ground forces. Basij units often engaged in crackdowns on political opposition elements without formal guidance or supervision from superiors.

The security forces were not considered fully effective in combating crime, and corruption and impunity remained problems. Human rights groups frequently accused regular and paramilitary security forces, such as the Basij, of committing numerous human rights abuses, including acts of violence against protesters and participants in public demonstrations. There was no transparent mechanism to investigate or punish security force abuses, and there were few reports of government actions to discipline abusers.

Arrest Procedures and Treatment of Detainees

The constitution and penal code require a warrant or subpoena for an arrest and state that an arrested person must be informed of the charges against them within 24 hours. Authorities often violated these procedures by holding some detainees, at times incommunicado, for weeks or months without charge or trial, frequently denying contact with family or timely access to legal representation. The law obligates the state to provide indigent defendants with attorneys only for certain types of crimes. The courts set prohibitively high bail, even for lesser crimes, and in many cases courts did not set bail. Authorities often compelled detainees and their families to submit property deeds to post bail. Persons released on bail did not always know how long their property would be retained or when their trials would be held, which effectively silenced them for fear of losing their families' property.

The government placed persons under house arrest without due process to restrict their movement and communication. At year's end former presidential candidates Mehdi Karroubi and Mir Hossein Mousavi and Mousavi's wife, Zahra Rahnavard, remained under house arrest imposed in 2011 and awaited formal charges. Security forces restricted their access to visitors and limited their access to outside information. Both Karroubi and Mousavi reportedly suffered from serious health problems during the year but were sometimes denied adequate medical care.

Arbitrary Arrest: Authorities commonly used arbitrary arrests to impede alleged antiregime activities. Plainclothes officers often arrived unannounced at homes or offices, arrested persons, conducted raids, and confiscated private documents, passports, computers, electronic media, and other personal items without warrants or other assurances of due process. Individuals often remained in detention facilities for long periods without charges or trials and were sometimes prevented from informing others of their whereabouts for several days. Authorities often

denied detainees' access to legal counsel during this period and imposed travel bans on individuals if they were released pending trial.

On April 21, authorities arrested journalist Hossein Nourani Nejad and placed him in solitary confinement in Evin Prison, according to an August 1 Amnesty International report. On June 10, a revolutionary court in Tehran sentenced Nejad to six years' imprisonment for "propaganda against the system" and "colluding against national security." Authorities released Nejad on bail at year's end.

Pretrial Detention: Pretrial detention was often arbitrarily lengthy, particularly in cases involving alleged violations of national security laws. Approximately a quarter of the prisoners held in state prison facilities were reportedly pretrial detainees. According to Human Rights Watch, a judge may prolong detention at his discretion, and pretrial detention often lasted for months. Often authorities held pretrial detainees in custody with the general prison population.

According to a July 28 Amnesty International report, authorities detained journalist Saba Azarpeik on May 28 and held her for two months in solitary confinement in an undisclosed location, where she had no access to a lawyer and could not communicate with her family. On July 21, authorities brought Azarpeik before Branch 26 of the Revolutionary Court in Tehran, where she faced the charge of "propaganda against the system." Azarpeik was free on bail at year's end.

A dual citizen journalist employed by an American newspaper was arrested in July and remained in prison through the end of 2014. During this reporting year, the journalist was denied access to consular visitation, and according to media reports, was denied legal representation and release on bail, and was not informed of the charges against him. His family as well as international monitoring groups publicly noted his physical and psychological distress and lack of proper medical care for preexisting medical conditions.

There was a development in a previous year's case: According to an October 5 report by the Sufi news website *Majzooban Noor*, Omid Behrooz, a human rights lawyer held in pretrial detention from 2011 until his sentencing in July 2013 to seven and one-half years in prison, suffered a head injury October 4 in Evin Prison after losing his balance following a 33-day hunger strike.

Amnesty: On March 31, Supreme Leader Ali Khamenei announced the pardon of 920 prisoners on the occasion of the anniversary of the establishment of the Islamic

Republic of Iran. According to an April 3 report by the ICHRI, no political prisoners were known at that time to be among those pardoned.

e. Denial of Fair Public Trial

The constitution provides that the judiciary be “an independent power” that is “free from every kind of unhealthy relation and connection.” The court system was subject to political influence, and judges were appointed “in accordance with religious criteria.” The supreme leader appoints the head of the judiciary, and the heads of the judiciary, members of the Supreme Court, and the prosecutor general were clerics. International observers continued to criticize the lack of independence of the country’s judicial system and judges and maintained that trials disregarded international standards of fairness.

Trial Procedures

According to the constitution and criminal procedure code, a defendant has the right to a fair trial, to be presumed innocent until convicted, to access a lawyer of his or her choice, and to appeal convictions in most cases that involve major penalties. These rights were not respected. Panels of judges adjudicate trials; there is no jury system in either civil or criminal courts. Human rights activists reported trials in which authorities appeared to have determined the rulings in advance and defendants did not have the opportunity to confront their accusers or have access to government-held evidence.

The government often charged political dissidents with vague crimes, such as “antirevolutionary behavior,” “moral corruption,” “siding with global arrogance,” “enmity towards God” (moharebeh), and “crimes against Islam.” Prosecutors imposed strict penalties on government critics for minor violations. When post-revolutionary statutes did not address a situation, the government advised judges to give precedence to their knowledge and interpretation of Islamic law (sharia). Under sharia, judges may find a person guilty based on their own “divine knowledge,” or they may issue more lenient sentences for persons who kill others considered “deserving of death,” meaning that the victim was believed to have done something serious and contrary to sharia. Other trials were designed to publicize coerced confessions.

During the year human rights groups noted the absence of procedural safeguards in criminal trials. Courts admitted as evidence confessions made under duress or torture. In his August 27 report, the UN special rapporteur cited continuing reports

pointing to the “widespread and systematic use” of psychological and physical torture to solicit confessions. On October 25, authorities executed Reyhaneh Jabbari for the killing of a former MOIS employee she claimed she stabbed in self-defense after he tried to sexually abuse her, according to Amnesty International. The UN special rapporteur cited allegations that Jabbari’s conviction for premeditated murder was based on confessions she made under duress, possibly amounting to torture.

On May 20, the state-run network, Islamic Republic of Iran Broadcasting, broadcast expressions of remorse from six men and women whom authorities had arrested following their participation in an online video where they danced to a popular international song. A September 11 report by the ICHRI alleged that the expressions of remorse were coerced. On September 18, the courts informed the six that they had been sentenced to up to one year in prison and 91 lashes. The sentences appeared to have been suspended.

Numerous human rights groups continued to question the legitimacy and secrecy of the special clerical court, which is headed by a Shia Islamic legal scholar and overseen by the supreme leader. The constitution does not provide for the court, which operated outside the judiciary’s purview. The court is charged with investigating alleged offenses committed by clerics and issuing rulings based on an independent interpretation of Islamic legal sources. Critics alleged that clerical courts were used to control non-Shia clerics as well as to prosecute Shia clerics who expressed controversial ideas and participated in activities outside the sphere of religion, such as journalism or reformist political activities.

According to a June 5 report by Majzooban Noor, a special clerical court sentenced Sufi lay member Abbas Salehian to a six-month’s imprisonment for “committing a forbidden act by promoting the Gonabadi Sufi order.”

Political Prisoners and Detainees

Statistics regarding the number of citizens imprisoned for their political beliefs were not available. According to the UN special rapporteur’s March report, authorities incarcerated at least 895 political prisoners and prisoners of conscience. Other human rights activists estimated there could be more than 1,000 prisoners of conscience, including those jailed for their religious beliefs.

During the year the government arrested students, journalists, lawyers, political activists, women’s activists, artists, and members of religious minorities, charged

many with crimes, such as “propaganda against the system” and “insulting the supreme leader” and treated such cases as national security trials (see sections 1.a. through 1.e.; section 6, Women; and section 7.a.). On December 17, the NGO Committee to Protect Journalists reported that the country held 30 journalists in prison.

According to opposition press reports, the government also arrested, convicted, and executed persons on criminal charges, such as drug trafficking, when their actual offenses were political. The government reportedly held some persons in prison for years on baseless charges of sympathizing with alleged terrorist groups. Authorities often held political prisoners in solitary confinement for extended periods, denying them due process and access to legal representation. Political prisoners were also at greater risk of torture and abuse in detention. The government often placed political prisoners in prisons far from their homes and families. The government did not permit international humanitarian organizations or UN representatives access to political prisoners.

According to a July 24 ICHRI report, in July Branch 28 of the Tehran Revolutionary Court sentenced eight Facebook users to prison terms ranging from 11 to 21 years; two of the eight were also fined and sentenced to receive 50 lashes. The charges against them were “propaganda against the state,” “assembly and collusion against national security,” “blasphemy,” and insulting government officials and the supreme leader. According to the opposition website Kaleme, the IRGC’s cyber-crime intelligence unit arrested the eight in July 2013 (see section 2.a.).

According to a September 9 HRANA report, police arrested student activist Arash Sadeghi on September 6. Subsequent HRANA reports indicated that Sadeghi was held in Evin Prison 2A. Authorities also arrested Sadeghi’s wife, Golrokh Abrahami Iraei, for her Facebook activities but later released her on bail.

During the year the government released some political prisoners. Most of those released were approaching the end of their sentences, but the government could order them to return to prison at any time. In addition, authorities occasionally gave political prisoners suspended sentences to intimidate and silence them. The government also controlled political activists by temporarily suspending baseless court proceedings against them and allowing authorities to re-arrest them. The government attempted to intimidate activists by calling them in repeatedly for questioning. The government issued travel bans on some former political prisoners and imposed forced internal exile on others.

There were developments in the case of human rights lawyer and former political prisoner Nasrin Sotoudeh, released in September 2013 from Evin Prison, where she had been imprisoned on propaganda and national security charges. On October 18, the Iranian Bar Association banned Sotoudeh from practicing law for three years. Sotoudeh reported that intelligence agents briefly detained her and her husband on December 10 while they were on their way to a Human Rights Day demonstration at the Iranian Bar Association to protest the suspension of her legal license.

Civil Judicial Procedures and Remedies

Citizens had limited ability to sue the government and were not able to bring lawsuits against the government for civil or human rights violations through domestic courts.

Property Restitution

The constitution allows the government to confiscate property acquired illicitly or in a manner not in conformity with Islamic law. The government appeared to target religious minorities in invoking this provision. There were several reports during the year of authorities evicting and seizing the property of members of the Bahai community without due process.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution states that “reputation, life, property, [and] dwelling[s]” are protected from trespass, except as “provided by law,” but the government routinely infringed on this right. Security forces monitored the social activities of citizens, entered homes and offices, monitored telephone conversations and internet communications, and opened mail without court authorization. There were widespread reports that government agents entered, searched, and ransacked the homes and offices of reformist or opposition leaders, activists, political prisoners, journalists, and their families to intimidate them.

Section 2. Respect for Civil Liberties, Including

a. Freedom of Speech and Press

The constitution provides for freedom of expression and of the press, except when words are deemed “detrimental to the fundamental principles of Islam or the rights of the public.” The law states that anyone who undertakes any form of propaganda against the state may be imprisoned for as long as one year; the law does not define “propaganda.” The law also provides for prosecution of persons accused of instigating crimes against the state or national security or “insulting” Islam; the latter offense is punishable by death. The government severely restricted freedom of speech and of the press and used the law to intimidate or prosecute persons who directly criticized the government or raised human rights problems. According to the Committee to Protect Journalists, the government continued a campaign of press intimidation throughout the year.

Freedom of Speech: The law limits freedom of speech, including by members of the press. Individuals were not permitted to criticize publicly the country’s system of government, supreme leader, or official religion. Security forces and the country’s judiciary punished those who violated these restrictions and often punished as well persons who publicly criticized the president, the cabinet, and the Islamic Consultative Assembly. The government monitored meetings, movements, and communications of opposition members, reformists, activists, and human rights defenders. It often charged persons with crimes against national security and insulting the regime based on letters, e-mails, and other public and private communications. According to the August 1 Amnesty International report, during the year anyone deemed critical of authorities, particularly journalists, were at increased risk of arrest and prosecution, creating an intense climate of fear.

Press Freedoms: The government’s Press Supervisory Board issues press licenses, which it sometimes revoked in response to articles critical of the government or the regime. During the year the government banned, blocked, closed, or censored publications deemed critical of officials. The government did not permit foreign media organizations to film or take photographs in the country, required foreign correspondents to provide detailed travel plans and topics of proposed stories before granting visas, and attempted to influence correspondents through pressure. Islamic Republic of Iran Broadcasting, the main governmental agency in charge of audiovisual policy, directed all state-owned media. Under the constitution the supreme leader appoints the head of the audiovisual policy agency; a council composed of representatives of the president, the judiciary, and the Islamic Consultative Assembly oversees the agency’s activities. The Ministry of Culture and Islamic Guidance reviews all potential publications, including foreign printed materials, prior to their domestic release and may deem books unpublishable, remove text, or require word substitution for terms deemed inappropriate.

Independent print media companies existed, but the government severely limited their operations. It closed or prohibited opposition and reformist newspapers, intimidated and arrested journalists and censored news. Censorship and temporary closures for allegedly insulting the regime were also aimed at government-controlled print media. For example, on February 18, authorities reportedly shut down the *Aseman* newspaper after it published an article criticizing the country's retributive criminal punishment practices as "inhumane."

On March 8, according to the UN special rapporteur's August 27 report, a court ordered the closure of the reformist daily newspaper *Bahar* for an additional six months, following its original closure in November 2013 after it published an opinion article questioning whether the Prophet Muhammad had appointed Imam Ali his successor, one of Shia Islam's principal beliefs. On October 10, the media reported that the Press Supervisory Board head cleared the newspaper of charges.

In December authorities banned the online newspaper *Roozan* without an official explanation, although many online scholars and activists commented that it was likely due to *Roozan's* publishing of a photo of the late Ayatollah Montazeri on its cover. (Montazeri, a human rights activist, was once expected to be the successor to Ayatollah Khomeini, but he split from Khomeini in 1989 because of disagreements over government policies with respect to citizens' rights.)

Under the constitution private broadcasting is illegal. The government maintained a monopoly over all television and radio broadcasting facilities through the state agency, Islamic Republic of Iran Broadcasting. Radio and television programming, the principal source of news for many citizens (especially in rural areas with limited internet access), reflected the government's political and socio-religious ideology. There were widespread reports of the government's engagement in the local "downlink" jamming of satellite broadcasts. Satellite dishes remained illegal but ubiquitous, although police launched several campaigns to confiscate privately owned satellite dishes around the country under warrants provided by the judiciary.

Violence and Harassment: The government and its agents harassed, detained, abused, and prosecuted publishers, editors, and journalists, including those involved in internet-based media, for their reporting (see also section 1.e.). The government also harassed many journalists' families, and journalists in prison were often subjected to solitary confinement. According to the UN special rapporteur's August 27 report, at least 35 journalists were in detention at the time, and

harassment, interrogation, and surveillance of other journalists reportedly continued. Several journalists, including Yeganah Salehi, Mehdi Khalazi, and Mashallah Shamsolvaezin, were arrested between June and August. Three others, Reyhaneh Tabatabaei, Mahnaz Mohammadi, and Marzieh Rasoulis, were summoned to begin serving prison sentences. Several others, including Seraj Miramadi, Farideh Shahgholi, and Hossein Nourani received new prison sentences. International NGOs reported that several citizen journalists were forced into exile during the year and that authorities continued to close publications for political reasons.

According to the Committee to Protect Journalists, on April 17, several imprisoned journalists, including Mohamed Sedigh Kabouvand, Saeed Matinpour, Omid Behroozi, Hossein Ronaghi Maleki, Siamak Ghaderi and Saeed Haeri, were among the persons attacked and severely beaten and injured when intelligence officials raided a section of Tehran's Evin Prison, according to Kaleme and other opposition news sources.

There were developments in previous years' cases. According to the Observatory for the Protection of Human Rights Defenders, an international advocacy group, on March 14, Saeed Madani, a sociologist and human rights activist, and Reza Entessari, a *Majzooban-e Noor* website reporter and photojournalist, were unexpectedly transferred together to Rajaishahr Prison. Transfers to Rajaishahr Prison were considered by some domestic and international NGOs to be a punishment for prisoners and their families due to its isolated location. In June 2013 a court sentenced Madani to six years in prison and 10 years of internal exile in Bandar Abbas for "acting against national security" and "propaganda against the system." In July 2013 a court sentenced Entessari to eight years and six months in prison for "establishing an illegal group with the intent to undermine national security," "propaganda against the system," "insulting the leader," and "disrupting the public order."

In July 2013 journalist Fatemeh Kheradmand received a one-year prison sentence for "propaganda against the system" in connection with her work on an internet magazine. According to media sources, Kheradmand fled the country when released on bail, but, after being summoned to return, she began her sentence in October 2013.

Censorship or Content Restrictions: The law forbids government censorship but also prohibits dissemination of information the government considers "damaging." During the year the government censored publications – both reformist and

conservative – that criticized official actions or contradicted official views or versions of events. “Damaging” information included discussions of women’s rights, the situation of minorities, and criticism of the government. Officials routinely intimidated journalists into practicing self-censorship. Public officials often filed criminal complaints against reformist newspapers, and the Press Supervisory Board referred such complaints to the Media Court for further action, including closure, suspension, and fines. For example, according to media sources, on May 7, the Tehran judiciary suspended the reformist newspaper *Ghanoon*, reportedly for reporting on the enormous bail set for a government official. Court proceedings were public with a jury composed of appointed clerics, government officials, and editors of government-controlled newspapers.

The Ministry of Culture and Islamic Guidance’s censorship’s practice is to bar inappropriate content, including references pertaining to alcohol or describing physical contact between an unmarried woman and man.

On December 26, the government announced plans to expand its so-called “smart filtering” practices, whereby it censors certain prohibited internet content without completely blocking the websites on which such content appears. At the time of the announcement, authorities appeared to be applying smart filtering only to the photo-sharing website Instagram.

Libel Laws/National Security: The government commonly used libel laws or cited national security to suppress criticism. According to the law, if any publication contains personal insults, libel, false statements, or criticism, the insulted individual has the right to respond in the publication within one month. If the libel, insult, or criticism involves Islam or national security, the responsible person may be charged with apostasy and crimes against national security, respectively. The government applied the law throughout the year, often citing statements made in various media outlets or internet platforms that criticized the government, to arrest, prosecute, and sentence individuals for crimes against national security.

On August 10, HRANA reported the Shiraz Revolutionary Court sentenced Ibrahim Farabad Fallahiyah to six years in prison on charges of insulting the supreme leader, founding an illegal group named Gorooh-e-Sabz-e-Shiraz (Green Group of Shiraz), disturbing national security, and spreading propaganda against the supreme leader.

There were developments in several cases from previous years. According to a March 27 ICHRI report, hundreds of lawyers asked the judiciary for an immediate

review of judicial violations in the cases of Mostafa Daneshjoo, Farshid Yadollahi, Amir Eslami, and Omid Behrouzi. Judicial violations allegedly included the courts denying the defendants access to a lawyer of their choice, failing to make the cases available to all the lawyers involved in the preparation of their defense, and convening the court in the absence of all the lawyers representing the defendants as well as a representative from the Prosecutor's Office.

Internet Freedom

The government restricted and disrupted access to the internet, monitored private online communications, and censored online content. Individuals and groups self-censored. The government collected personally identifiable information in connection with citizens' peaceful expression of political, religious, or ideological opinion or beliefs.

According to a 2013 World Bank study, 31.4 percent of the population used the internet and approximately 5.6 percent of households subscribed to fixed broadband services.

Reflecting the internet's importance as a source for news and forum for political expression, the government adopted technology and shaped restrictive laws enabling it to ban access to particular sites and to filter traffic based on its content. The Ministry of Culture and Islamic Guidance must approve all internet service providers. The government also requires all owners of websites and blogs in the country to register with the ministry, which, along with the Ministry of Information and Communications Technology, the Ministry of Intelligence and Security, and the Tehran Public Prosecutor's Office, compose the Committee in Charge of Determining Unauthorized Websites, the governmental organization that determines censoring criteria. The same law that applies to traditional press applies to electronic media, and the Press Supervisory Board and judiciary used the law to close websites during the year.

NGOs reported that the government continued enhanced restrictions on access to the internet that were initially imposed in advance of the 2013 presidential election. These restrictions included a change in the government's filtering methodology from "uniform resource locator (URL) filtering" to "content filtering" before the election. This change effectively imposed content-based restrictions on material not previously banned. Internet traffic over mobile communication devices, including cell phones, was reportedly subject to the same restrictions as traffic operating over fixed-line connections.

The Supreme Council for Cyberspace formulates the country's internet policies and devises plans to regulate its use. The Committee in Charge of Determining Offensive Content, headed by the prosecutor general and judiciary, reportedly implements the council's decisions regarding the filtering and blocking access to sensitive websites.

Organizations, including the Basij "Cyber Council," the Cyber Police, and the Cyber Army, which was presumed to be controlled by the Revolutionary Guards, monitored, identified, and countered alleged cyber threats to national security. These organizations especially targeted citizens' activities on social networking websites officially banned by the Committee in Charge of Determining Offensive Content, such as Facebook, Twitter, YouTube, and Flickr, and reportedly harassed persons who criticized the government, including by raising sensitive social issues. NGOs reported that the government attempted to block internet users' access to technology that would allow them to circumvent government content filters.

Notwithstanding government restrictions, many individuals used social media regularly, ranging across the spectrum from heavy users like urban youth to more measured users in high positions. Foreign Minister Mohammad Javad Zarif posted messages using a verified Twitter account. Active Twitter accounts purporting to belong to Supreme Leader Khamenei and President Rouhani were widely considered to be authentic and run by their respective offices.

Ministry of Information and Communications Technology regulations prohibit households and cybercafes from having high-speed internet access, and the government requires cybercafes to install security cameras and to collect users' personal information. The government periodically reduced internet speed to discourage downloading material.

According to the UN special rapporteur's August report, serious difficulties persisted, including severe content restrictions, intimidation and prosecution of users, and limitations on access through the intentional slowing of service and filtering. As of August authorities blocked approximately five million websites. The most heavily blocked websites were in the arts, society, and news categories.

The government prosecuted and punished several bloggers and webmasters, such as student activist Arash Sadeghi and his wife, Golrokh Abrahimi Iraei, for the peaceful expression of dissenting views (see section 1.e). Similarly, according to the Kaleme news agency, on May 28, the Revolutionary Court in Tehran sentenced

eight Facebook commenters to a combined 123 years in prison on various charges, including insulting the country's supreme leader, blasphemy, propaganda against the state, and spreading lies. Their sentences ranged from seven to 20 years in prison (see also section 1.e.).

Academic Freedom and Cultural Events

The government significantly restricted academic freedom and the independence of higher education institutions. Authorities systematically targeted university campuses to suppress social and political activism by prohibiting independent student organizations, imprisoning student activists, removing faculty, preventing students from enrolling or continuing their education based on their political or religious affiliation or activism, and restricting social sciences and humanities curricula. Women were restricted from enrolling in several courses of study and faced limited program opportunities, quotas on program admission, and gender-segregated classes (see section 6, Women).

Although universities reportedly re-admitted a number of students previously expelled under a "star" system inaugurated in 2005 by then president Ahmadinejad to mark politically active students, other "starred" students reported that government authorities still interfered with their university enrollment because of their political activities. In an October 12 open letter to President Rouhani, activist and former political prisoner Peyman Aref wrote that the Ministry of Intelligence and Security blocked his enrollment in a doctoral program after he provided testimony in support of Rouhani's impeached minister of science and research, Reza Faraji-Dana. Faraji-Dana reportedly had attempted to reinstate some university professors whom authorities had dismissed in accordance with a policy of removing and denying tenure to secular professors or for deviating from the government-sanctioned perspective on such topics as the situation of women, ethnic and religious minorities, drug abuse, and domestic violence.

The government maintained controls on cinema, music, theater, and art exhibits and censored those deemed to transgress Islamic values. The government censored films that authorities deemed contradicted Islamic values by promoting secularism, non-Islamic ideas about women's rights, unethical behavior, drug abuse, violence, or alcoholism. Cultural creators self-censored in response, while others faced risk of arrest. For example, on May 20, authorities arrested six young citizens and forced them to repent on state television for posting a homemade music video on YouTube of them dancing to a popular international song. After international outrage over its actions, the government released all six.

Music remained banned in all schools, and the media reported that officials continued to discourage teaching music in general. The Culture and Islamic Guidance Ministry must officially approve a song's lyrics and music as complying with the country's moral values, although many bands released albums without seeking such permission. Heavy metal and foreign music were considered religiously offensive, and police continued to crack down on underground concerts and music groups.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution permits assemblies and marches of unarmed persons "provided they do not violate the principles of Islam." The government restricted this right and closely monitored gatherings to prevent antiregime protests. Such gatherings included public entertainment and lectures, student and women's meetings and protests, meetings and worship services of minority religious groups, labor protests, online gatherings and networking, funeral processions, and Friday prayer gatherings. According to activists, the government arbitrarily applied rules governing permits to assemble, with proregime groups rarely experiencing difficulty and groups viewed as critical of the regime experiencing harassment regardless of whether a permit was issued. The government sometimes slowed internet speeds or blocked e-mail or text messaging services to disrupt potential public gatherings or demonstrations.

There were reports that security forces disrupted demonstrations and meetings and arrested individuals who participated in such gatherings. According to the UN special rapporteur's August report, between March 2013 and March 2014, security forces arrested at least 28 students and imprisoned at least 11 student activists.

Freedom of Association

The constitution provides for the establishment of political parties, professional or political associations, and Islamic and recognized religious minority organizations, as long as such groups do not violate the principles of freedom, sovereignty, national unity, or Islamic criteria or question Islam as the basis of the country's system of government. The government limited freedom of association through threats, intimidation, the imposition of arbitrary requirements on organizations, and the arrests of group leaders and members.

The government continued to exert significant pressure on members of human rights organizations, including the Defenders of Human Rights Center. The government also restricted groups advocating for women's or minority groups' rights (see section 5), recognized and unrecognized minority religious groups, trade unions, and other labor-related groups (see section 7.a.).

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of internal movement, foreign travel, emigration, and repatriation. The government placed some restrictions on these rights. The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) with regard to refugees from Afghanistan and Iraq.

In-country Movement: Women, especially in rural areas, sometimes faced official and societal harassment for traveling alone. Conservative social norms often restricted the free movement of women in rural areas outside the home or village. Women in those areas often required the supervision of a male guardian or chaperone to travel.

Refugees faced restrictions on in-country movement. According to the UN special rapporteur's October 2013 report, authorities prohibited Afghan nationals from residing in 16 of the country's 31 provinces and in parts of 13 other provinces.

Foreign Travel: The government required exit permits for foreign travel for all citizens. Some citizens, particularly those whose skills were in demand and who were educated at government expense, had to post bond to obtain an exit permit. The government restricted foreign travel of some religious leaders, members of religious minorities, and scientists in sensitive fields. Several journalists, academics, opposition politicians, human and women's rights activists, and artists remained subject to foreign travel bans and had their passports confiscated during the year.

Exile: The law does not provide for forced exile. Many dissidents, activists, journalists, academics, artists, members of recognized and unrecognized religious or ethnic minority communities, and LGBT persons practiced self-imposed exile to express their beliefs freely or escape government harassment.

Protection of Refugees

Access to Asylum: The law provides for the granting of asylum or refugee status to qualified applicants. While the government reportedly has a system for providing protection to refugees, the UNHCR did not have any information as to how the country made asylum determinations.

Access to Basic Services: According to the UN special rapporteur's March report, the government does not recognize marriages between irregular migrants and citizens leaving many children born out of such marriages without a birth certificate and depriving them of educational opportunities and health care (see section 6, Children). In December 2013 the head of the Bureau for Aliens and Foreign Immigrants' Affairs reportedly said that Afghan children lacking legal documents could not register in schools. Justice for Iran, a human rights advocacy group, reported the government sometimes charged school fees to the children of registered Afghan refugees, prompting some refugee children to study in illegal, self-governed schools that the government sometimes closed. Most provinces' residency limitations on refugees effectively denied them access to public services, such as public housing, in those provinces. According to the 2012 report of the UN secretary-general on the human rights situation in the country, children of registered refugee parents continued to be denied birth certificates.

Stateless Persons

Women may not transmit citizenship to their children or to a noncitizen spouse. According to media reports in 2013, there were officially 30,000 citizens married to Afghan men, although the number was likely much higher. There were more than 32,000 children without refugee identification cards in 2013, making them effectively stateless and subject to inconsistent government policies. They could attend formal government schools but could not receive certification for their attendance. Charities, principally domestic, provided medical care. Authorities prohibited stateless persons from receiving formal government support or travel documents.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides citizens the ability to change the president and Islamic Consultative Assembly members peacefully through free and fair elections, but candidate vetting conducted by unelected bodies and often based on arbitrary criteria severely abridged this right. The Assembly of Experts, which is composed of 86 popularly elected clerics who serve eight-year terms, elects the supreme leader, who acts as the recognized head of state and may be removed only by a vote of the assembly. The Guardian Council vets and qualifies candidates for all legislative and presidential elections based on criteria that include candidates' allegiance to the state and to Islam. The council consists of six clerics, who are appointed by the supreme leader and serve six-year terms, and six jurists, who are nominated by the head of the judiciary and approved by the Islamic Consultative Assembly. There is no separation of state and religion, and certain clerics had significant influence in the government. Voters elect the president by direct popular vote with universal suffrage.

Elections and Political Participation

Recent Elections: In June 2013 voters elected Hassan Rouhani president. The Interior Ministry announced that Rouhani won 50.88 percent of the votes with a 72 percent turnout of eligible voters. Although the government did not allow outside observers to monitor the election, several organizations observed that, while turnout was high and the official results appeared to be consistent with voter sentiment, the country's electoral system continued to fall short of international standards for free and fair elections as a result of the supreme leader's and Guardian Council's preeminent roles in all political processes, including selecting which individuals permitted to run for office.

In September 2013 the UN secretary-general reported that "open and critical" debates preceded the election but noted reports of intimidation of activists, journalists, and trade unionists as well as allegations of restrictions on freedom of expression in the period preceding the election, including the virtual shutdown of internet traffic, the sporadic blocking of text messages, and the censoring of opposition websites.

The Guardian Council approved eight candidates for president out of 686 individuals who registered as candidates. It did not approve any women registrants. In May 2013 the UN special rapporteur reported that several

candidates were apparently excluded because of their involvement in postelection protests in 2009. The Guardian Council also excluded 78-year-old former two-term president Akbar Hashemi Rafsanjani on the ground that he was too old.

Political Parties and Political Participation: The constitution provides for the formation of political parties, but the Interior Ministry granted licenses only to parties with ideological and practical adherence to the system of government embodied in the constitution. Registered political organizations that adhered to the system generally operated without restriction, but most were small, focused around an individual, and without nationwide membership. Members of political parties and persons with any political affiliation that the regime deemed unacceptable faced harassment, violence, and sometimes imprisonment.

The government maintained bans on several opposition organizations and political parties. Security officials continued to harass, intimidate, and arrest members of the political opposition and some reformists (see also section 1.e.). At year's end two opposition leaders and 2009 presidential candidates Mehdi Karroubi and Mir Hossein Mousavi as well as Mousavi's wife, Zahra Rahnavard, remained under house arrest that was imposed in 2011.

Participation of Women and Minorities: Women faced significant legal, religious, and cultural barriers to political participation. According to the Guardian Council's interpretation, the constitution bars women and persons of foreign origin from serving as supreme leader or president; as members of the Assembly of Experts, Guardian Council, or Expediency Council (a body responsible for mediating between the Islamic Consultative Assembly and the Guardian Council and serving as a consultative council for the supreme leader); and as judges. In May 2013 the Guardian Council disqualified all 30 women who registered as presidential candidates in the June election. Nine women won seats in the 281-seat parliament in the 2012 elections. Women served in senior government positions, including vice president for legal affairs, minister of environmental protection, minister of women and family affairs, and foreign ministry spokesperson.

Practitioners of religions other than Shia Islam were barred from serving as supreme leader or president and from membership in the Assembly of Experts, Guardian Council, or Expediency Council. The law reserves seats in the Islamic Consultative Assembly for members of recognized minority religious groups. In the assembly elected in 2012, members of religious minorities (two Zoroastrians, three Jews, and nine Christians) held 14 of the 290 seats. There were no non-Muslims in the cabinet or on the Supreme Court.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, but the government did not implement the law effectively, and corruption was a serious and ubiquitous problem. Officials in all three branches of government frequently engaged in corrupt practices with impunity. Many officials expected bribes for providing routine service. Individuals routinely bribed officials to obtain permits for illegal construction.

Corruption: Endowed religious charitable foundations, or “bonyads,” accounted for a large portion of the country’s economy that some experts estimated at 30 percent. Government insiders, including members of the military and clergy, ran these tax-exempt organizations, which are defined under law as charities. Members of the political opposition and international corruption watchdog organizations frequently accused bonyads of corruption. Bonyads received benefits from the government but were not required to have their budgets publicly approved by any government agency.

International news agencies reported that numerous Revolutionary Guard-owned front companies and subsidiaries engaged in trade and business activities, sometimes illicitly, in the telecommunications, mining, and construction sectors. Other IRGC entities reportedly engaged in smuggling pharmaceutical products and raw materials. The domestic and international press similarly reported that individuals with strong government connections had access to foreign currency at preferential exchange rates, allowing them to take advantage of a gap between the country’s black market and official exchange rates.

According to a September 1 report by *Tehran Iranian Labor News*, authorities sentenced former vice president Mohammad Reza Rahimi to prison over his involvement in a financial corruption case.

Numerous government agencies existed to fight corruption, including the Anticorruption Headquarters, Anticorruption Task Force, Committee to Fight Economic Corruption, and the General Inspection Organization. Parliament’s Article 90 Commission was also authorized to look into complaints of corruption within the government. Information was unavailable regarding these organizations’ specific mandates, their collaboration with civil society, and whether they operated effectively, independently, and were sufficiently resourced.

Financial Disclosure: Government officials, including cabinet ministers and members of the Guardian Council, Expediency Council, and Assembly of Experts, are required to submit annual financial statements to the state inspectorate. There was no information available on whether the government effectively implemented the law, officials obeyed the law, or financial statements were publicly accessible. There was also no information available on whether there were public outreach activities or public official training to encourage effective use of the financial statements.

Public Access to Information: The law does not provide for public access to government information.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government restricted the work of human rights groups and activists and often responded to their inquiries and reports with harassment, arrests, and monitoring of individual activists and organization workplaces.

The government restricted the operations of and did not cooperate with local or international human rights NGOs investigating alleged violations of human rights. By law NGOs must register with the Interior Ministry and apply for permission to receive foreign grants. Independent human rights groups and other NGOs faced continued harassment because of their activism as well as the threat of closure by government officials following prolonged and often arbitrary delays in obtaining official registration.

During the year the government prevented some human rights defenders, civil society activists, journalists, and scholars from traveling abroad. Human rights activists reported receiving intimidating telephone calls and threats of blackmail from unidentified law enforcement and government officials. Government officials sometimes harassed and arrested family members of human rights activists. Courts routinely suspended sentences of human rights activists. This form of sentencing acted as de facto probation, leaving open the option for authorities to arbitrarily arrest or imprison individuals later.

According to the UN special rapporteur's February 2013 report, human rights defenders reported arrests without a warrant, denial of access to legal counsel of their choice, and physical and psychological duress during interrogations for the purpose of soliciting signed and televised confessions. These human rights

defenders also reported being held in solitary confinement for periods ranging from one day to almost one year, unfair trials, and, in some cases, severe physical torture, including rape, electric shocks, hanging by hands or arms, and/or forced body contortion.

The government continued to imprison lawyers and others affiliated with the Defenders of Human Rights Center advocacy group, such as Abdolfattah Soltani, who was serving a 13-year prison sentence for alleged “propaganda against the system” and “colluding and conspiring against national security.” Center founding member and attorney for several political activists, Mohammad Ali Dadkhah, also remained in prison after receiving a nine-year sentence in 2011 for “plotting a soft revolution,” “propaganda against the system,” and illegally owning a satellite dish.

The government denied all requests from international human rights NGOs to establish offices in or conduct regular investigative visits to the country. The most recent visit by an international human rights NGO was by Amnesty International in 2004 as part of the EU’s human rights dialogue with the country.

The United Nations and Other International Bodies: During the year the government ignored or denied repeated requests for visits from UN special rapporteurs but in October and November participated in the Geneva-based UN Human Rights Council’s quadrennial universal periodic review (UPR) of its record. According to NGO sources, including Human Rights Watch and Amnesty International, the government’s rights record and its level of cooperation with international rights institutions remained poor. The government failed to implement many of the recommendations it had previously accepted during the first round of the 2010 UPR, including taking measures to prevent torture, promote equality of women in girls in law and practice, respect religious freedom, and enhance freedom of expression, association, and assembly. The most recent visit by a UN human rights agency was in 2005.

On March 28, the UNHRC renewed the resolution establishing the mandate for a human rights rapporteur for the country and reappointed Ahmed Shaheed as the special rapporteur to fulfill the mandate. Shaheed officially commenced work in 2011, but the government continued to deny his repeated requests to visit the country. The UN secretary-general also regretted the country’s lack of cooperation in his March 11 report.

On November 18, for the 12th consecutive year, the UN General Assembly adopted a resolution expressing deep concern about the country's "serious ongoing and recurring human rights violations." The resolution also noted with concern the government's lack of cooperation with UN mechanisms, including its poor implementation of the recommendations it accepted during the 2010 round of the UPR and its continued failure to allow the UN special rapporteur on human rights in Iran, Ahmed Shaheed, into the country to investigate human rights abuses. The resolution also cited the government's failure to approve any request from a UN thematic special procedures mandate holder to visit the country in nearly a decade.

Government Human Rights Bodies: The High Council for Human Rights, headed by Mohammad Javad Larijani, is part of the judicial branch of the government and lacks independence. The council continued to defend the imprisonment of high-profile human rights defenders and political opposition leaders, despite domestic and international pressure. In a March 11 session of the governmental High Council for Human Rights, Larijani accused several imprisoned activists of collaboration with terrorist groups. There was no information available as to whether the council challenged any laws or court rulings during the year.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

The constitution prohibits discrimination based on race, gender, disability, language, and social status "in conformity with Islamic criteria," but the government did not effectively enforce these prohibitions. The constitution does not prohibit discrimination based on sex, sexual orientation, or gender identity.

Women

Rape and Domestic Violence: Rape is illegal and subject to strict penalties, including execution, but it remained a problem, and the government did not enforce the law effectively. There were reports of government forces raping individuals in custody (see section 1.c.). Sex within marriage is considered to be consensual by definition, and therefore spousal rape is not addressed, including in cases of forced marriage.

Cases of rape were difficult to document due to nonreporting. Most rape victims did not report the crime because they feared retaliation or punishment for having been raped, as they could be charged with indecency, immoral behavior, or adultery for being in the presence of an unrelated male while unaccompanied. They also feared societal reprisal, such as ostracism. By law four Muslim men or a

combination of three men and two women are required to have witnessed a rape for conviction. A woman or man found making a false accusation of rape is subject to 80 lashes.

The law does not specifically prohibit domestic violence. The Census Bureau, the government agency responsible for data collection, does not permit international organizations to study domestic violence in the country and has never conducted its own study of violence against women. According to a 2011 University of Tehran study, a woman was physically abused every nine seconds in the country, an estimated three to four million women were battered each year by their husbands, and half of marriages had at least one instance of domestic violence.

Abuse in the family was considered a private matter and seldom discussed publicly. Some nongovernmental shelters and hotlines assisted victims during the year, but such services were virtually nonexistent outside major cities.

Female Genital Mutilation/Cutting (FGM/C): The law does not address FGM/C but does punish mutilation of the body. There were prosecutions for FGM/C during the year. There were reports of cases of FGM being performed in the provinces of Illam and Lorestan soon before marriage.

Other Harmful Traditional Practices: There were no official reports of killings motivated by “honor” or other harmful traditional practices during the year, although human rights activists reported they occurred, particularly among rural and tribal populations.

Sexual Harassment: The law addresses sexual harassment in the context of physical contact between men and women, but the law is biased against women. Physical contact between unrelated men and women is prohibited and punishable by lashing. There was no reliable data on the extent of sexual harassment. Media reports indicated that unwanted physical contact and verbal harassment occurred, but there were no known government efforts to combat and address these acts.

Reproductive Rights: The law recognizes the basic right of married couples to decide freely and responsibly the number, spacing and timing of their children. Couples are entitled to attain the highest standard of reproductive health and to have the information and means to do so, free from discrimination, coercion, and violence. On June 24, the parliament approved a bill that provides for punishment of anyone who performs birth control procedures, such as vasectomy and tubectomy. According to the state news agency, the law provides that violations

are to be considered a crime and violators fined. It is illegal for an unmarried woman to access contraception, although most single women had such access, particularly in urban areas.

Discrimination: The constitution provides for equal protection for women under the law and for all human, political, economic, social, and cultural rights in conformity with Islam. The government did not enforce the law, however, and provisions in the Islamic civil and penal codes, particularly sections dealing with family and property law, discriminate against women. Discrimination restricted women's economic, social, political, academic, and cultural rights. The governmental Center for Women and Family continued to publish reports on women's rights with a conservative religious slant and limited the debate on women's issues to matters related to the home. The center did not raise ideas contrary to the government or its interpretation of Islam.

Women may not transmit citizenship to their children or to a noncitizen spouse. The government does not recognize marriages between Muslim women and non-Muslim men, irrespective of their citizenship. The law states that a virgin woman or girl wishing to wed needs the consent of her father or grandfather or the court's permission, even if she is over the age of 18.

The law permits a man to have as many as four wives and an unlimited number of "temporary wives" (sigheh), based on a Shia custom under which a woman may become the time-limited wife of a Muslim man after a simple religious ceremony and a civil contract outlining the union's conditions. Temporary wives and any resulting children are not granted rights associated with traditional marriage, but the contract is enforceable.

A woman has the right to divorce only if her husband signs a contract granting that right, cannot provide for his family, or is a drug addict, insane, or impotent. A husband is not required to cite a reason for divorcing his wife. Traditional interpretations of Islamic law recognize a divorced woman's right to part of shared property and to alimony. These laws were not enforced. In 2011 the Supreme Court ruled that a woman could withhold sex from her husband if the husband refused to pay a personal maintenance allowance. By law such an allowance may be requested during the marriage as well as after a divorce. According to the Islamic Students' News Agency, if the allowance is not paid, the wife may "reject all legal and religious obligations" to her husband. If the allowance is not paid after the divorce, the woman may sue her former husband in court. Despite this ruling, the ability of a woman to seek divorce was limited.

The law provides divorced women preference in custody for children up to age seven. After the child reaches age seven, the father is entitled to custody unless he is proven unfit to care for the child. Divorced women who remarry must give the child's father custody. Courts determine custody in disputed cases.

Women sometimes received disproportionate punishment for crimes such as adultery, including death sentences (see sections 1.a. and 1.e.). Discriminatory laws against women continued to be introduced. The 2013 revised Islamic penal code, which came into force in June 2013, retains provisions that value a woman's testimony in a court of law as half that of a man's, and a woman's life as half that of a man's. The blood money paid to the family of a woman who was killed is half the sum paid for a man.

According to UN statistics, the literacy rate among women between the ages of 15 and 24 increased from 96.1 percent in 2000 to 99.2 percent in 2012. Women had access to primary and advanced education, although the percentage of female students entering universities decreased from 62 percent in 2007-2008 to 48 percent in 2012-13, following the institution in 2012 of gender-rationing policies. Quotas and other restrictions limited women's university admissions to certain fields, such as medicine and engineering, as well as to master's and doctoral programs. According to the UN special rapporteur's October 2013 report, the government did not reverse several universities' 2012 decision to restrict 77 fields of study to men.

Social and legal constraints limited women's professional opportunities (see section 7.d.). Women were represented in many fields, including in the parliament, on municipal councils, on police forces, and as firefighters, but the law requires a woman to obtain her husband's consent before working outside the home. There were no female officials appointed to the level of minister in the government. Despite the high proportion of women in universities, the unemployment rate for women was nearly twice that for men. The law does not provide that women and men must be paid equally for equal work. According to a survey for the World Economic Forum's 2013 *Global Gender Gap Report*, women earned on average 61 percent as much money as their male counterparts for similar work. Women may not run for president or serve in many high-level political positions or as judges, except as consultants or research judges without the power to impose sentences.

Women faced discrimination in home and property ownership as well as access to financing. The government enforced gender segregation in many public spaces,

including for patients during medical care, and prohibited women from mixing openly with unmarried men or men not related to them. Women must ride in a reserved section on public buses and enter public buildings, universities, and airports through separate entrances.

The law provides that a woman who appears in public without an appropriate headscarf (hijab) may be sentenced to lashings and fined. Absent a clear legal definition of “appropriate hijab” or the punishment, however, women were subject to the opinions of disciplinary forces or judges. For example, on September 25, the volunteer militia Ansar-e Hizballah renewed its threats to patrol Tehran’s streets to confront improperly veiled women.

On October 22, the semi-official Fars news agency reported that 2,000 residents of Isfahan had staged a protest demanding that authorities take stronger action to investigate a spate of acid attacks directed against at least eight women since October 15. Authorities arrested women’s rights activist Mahdieh Golroo on October 23 after she attended a Tehran demonstration against these attacks, according to the ICHRI. At year’s end Golroo remained detained in solitary confinement in Evin Prison’s Ward 2A. Government officials reportedly warned local media against linking the acid attacks to an ongoing parliamentary debate over proposed legislation that would impose additional fines and training for improperly veiled women.

Children

Birth Registration: Citizenship is derived from a child’s father, regardless of the child’s country of birth. Birth within the country’s borders does not confer citizenship, except when a child is born to unknown parents; when both parents are noncitizens, but at least one parent was born in the country; or when a child born in the country to noncitizens continues to reside in the country for at least one year after age 18. The law requires that all births be registered within 15 days.

Education: Although primary schooling up to age 11 is free and compulsory for all, the media and other sources reported lower enrollment in rural areas, especially for girls. According to UN statistics, the ratio of girls to boys in primary and secondary education increased from 79.2 percent in 1990 to 98 percent in 2012. The UNHCR stated that school enrollment among refugees was generally higher outside camps and settlements, where greater resources were available.

Child Abuse: There was little information available to reflect how the government dealt with child abuse, which was largely regarded as a private family matter. According to the Islamic Students' News Agency, more than 7,000 cases of child abuse were officially reported in 2012.

The law permits executions of individuals who have reached puberty, defined as age nine for girls and age 15 for boys, if a judge determines the individual understood the nature and consequences of the crime. According to the 2012 Human Rights Watch *World Report*, at the end of 2012, more than 100 juveniles were on death row.

Early and Forced Marriage: The legal minimum age of marriage for girls is 13, but girls as young as nine may be married with permission from the court. The law requires court approval for the marriage of boys younger than 15. According to UN statistics, at least 48,580 girls between the ages of 10 and 14 were married in 2011, all but 13 of whom reportedly had at least one child before they reached 15. Approximately 40,635 marriages of girls under age 15 were also registered between March 2012 and March 2013, of which more than 8,000 involved men who were at least 10 years older. At least 1,537 marriages of girls under the age of 10 were registered in 2012, compared with 716 registered between March 2010 and March 2011.

Female Genital Mutilation/Cutting (FGM/C): The law does not address FGM/C, but does punish mutilation of the body. There were no reported prosecutions during the year. FGM was widely practiced in the six provinces of Kurdistan, Western Azerbaijan, Kermanshah, Illam, Lorestan and Hormozghan. FGM was usually performed on girls under the age of 10. A 2012 study in Kermanshah Province suggested that FGM was a common practice among the women, with more than 55 percent of girls circumcised before the age of seven.

Other Harmful Traditional Practices: There were no official reports of killings motivated by "honor" or other harmful traditional practices during the year, although human rights activists reported they occurred, particularly in areas with large rural and tribal populations.

Sexual Exploitation of Children: The legal age requirements for consensual sex are the same as those for marriage, and sex outside of marriage is illegal. The law prohibits all forms of pornography, including child pornography. There was no information available about penalties for sexual exploitation of children.

International Child Abduction: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For country-specific information see the Department of State's website at travel.state.gov/content/childabduction/english/country/iran.html.

Anti-Semitism

While past media reports estimated the size of the country's Jewish population at 25,000, a 2012 census reported there were 8,756 Jewish residents. The law recognizes Jews as a religious minority and provides representation in the Islamic Consultative Assembly. Samiak Moreh Sedgh is the only Jewish member of parliament.

Officials continued to question the history and uniqueness of the Holocaust. On May 6, members of the Assembly summoned Foreign Minister Zarif and criticized him for having called the Holocaust a "tragedy" in an interview with a German television station. In a March 21 Nowruz, or Persian New Year, national address, Supreme Leader Khamenei asserted that the historical reality of the Holocaust was "unknown" and questioned if it "actually did happen."

The government continued to block the Persian language website of the Aladdin Project, a foreign-based NGO launched by the foreign Foundation for the Memory of the Shoah that provided information about the Holocaust and Jewish-Muslim relations. In November 2013 the domestic Fars News Agency published an article calling the website a creation of "international Zionism" that sought "to recognize the Zionists' fabricated narrative about the Holocaust, which will enable them to present the creation of [Israel] as both legitimate and necessary."

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law generally prohibits discrimination against persons with disabilities by government actors. No information was available regarding authorities' effectiveness in enforcing the law. The law does not apply to private actors, and electoral law prohibits blind and deaf persons from running for seats in the Islamic Consultative Assembly. While the law provides for state-funded vocational

education for persons with disabilities, according to domestic news reports, vocational centers were located in urban areas and unable to meet the needs of the entire population.

The law provides for public accessibility to government-funded buildings, and new structures appeared to comply with the standards in these provisions. There also were efforts to increase the access of persons with disabilities to historical sites. Nevertheless, government buildings that predated existing accessibility standards remained largely inaccessible, and general building accessibility for persons with disabilities remained a widespread problem. Persons with disabilities had limited access to information, education, and community activities.

The Welfare Organization of Iran is the principal governmental agency charged with protecting the rights of persons with disabilities.

National/Racial/Ethnic Minorities

While the constitution grants equal rights to all ethnic minorities and allows for minority languages to be used in the media and in schools, minorities did not enjoy equal rights, and the government consistently denied their right to use their languages in school. In addition, the Gozinesh (selection) law prohibits non-Shia ethnic minorities from fully participating in civic life. The law and its associated provisions make full access to employment, education, and other areas conditional on devotion to the Islamic republic and the tenets of Shia Islam.

The government disproportionately targeted minority groups, including Kurds, Arabs, Azeris, and Baluchis, for arbitrary arrest, prolonged detention, and physical abuse (see also section 1.e.). These groups reported political and socioeconomic discrimination, particularly in their access to economic aid, business licenses, university admissions, permission to publish books, and housing and land rights. Human rights organizations, including the ICHRI and the IHRDC, observed that the government's application of the death penalty disproportionately affected ethnic minorities.

In pretrial detention in Evin Prison, members of minority ethnicities and religions reportedly were repeatedly subjected to more severe physical punishment or torture than other prisoners, regardless of the type of crime accused. A former prisoner noted, for example, he had witnessed on numerous occasions minority prisoners being given 20 to 30 lashes for every one that he or other Shia prisoners received.

The estimated eight million Sunni ethnic Kurds in the country frequently campaigned for greater regional autonomy. The government continued to use security law, media law, and other legislation to arrest and prosecute Kurds for exercising their rights to freedom of expression and association. The government reportedly banned Kurdish-language newspapers, journals, and books and punished publishers, journalists, and writers for opposing and criticizing government policies. Although speaking the Kurdish language was not prohibited, schools were prohibited from teaching it. Authorities suppressed legitimate activities of Kurdish NGOs by denying them registration permits or bringing security charges against persons working with such organizations. Kurds were not allowed to register most Kurdish names for their children in official registries. The Gozinesh law impaired the ability of Sunni Kurds to integrate into civic life.

According to HRANA, on November 21, a revolutionary court sentenced three Kurds – Kianoosh Rostami, Mohsen Khodaband Loo, and Nemat Fathi – to a combined total of 44 years in prison on charges of being members of the Democrat Party, insulting the supreme leader, and declaring war against the supreme leader.

According to online activists, Ghasem Ahmadi, a journalist and editor of the previously banned Tehran University publication *Rozhaf*, started his two-year sentence in Mahabad Prison in January. In August 2013 HRANA reported that Branch 1 of the Mahabad Revolutionary Court sentenced Ahmadi to four years in prison on unspecified charges.

International human rights observers, including the IHRDC, stated that the country's estimated two million Ahwazi Arabs faced continued oppression and discrimination. In January authorities executed two Ahwazi Arab cultural rights activists in secret without prior notice to their families. The UN special rapporteur's October 2013 report had warned that five Ahwazi Arab cultural-rights activists faced imminent execution on charges of "gathering and colluding against state security," "propaganda against the system," "enmity against God," and "corruption on earth" for participating in protests in 2011-12. There was no new information on the remaining three individuals at year's end.

On December 28, relatives of inmates at Karoon Prison in Ahwaz demonstrated to protest poor treatment and insufficient medical care for the inmates, according to the Ahwazi Center for Human Rights. The center also reported that many Ahwazi students did not have access to adequate school facilities or sufficient numbers of teacher and that they on occasion beat Ahwazi students to the point they required hospitalization.

Ethnic Azeris, who numbered approximately 13 million persons or 16 percent of the population, were well integrated into government and society and included the supreme leader among their numbers. Nonetheless, Azeris reported the government discriminated against them by prohibiting the Azeri language in schools, harassing Azeri activists or organizers, and changing Azeri geographic names. Azeri groups also claimed a number of Azeri political prisoners had been jailed for advocating cultural and language rights for Azeris. The government charged several of them with “revolting against the Islamic state.”

There was no new information available regarding Vahid Faezpour Kiaksar, an Azeri blogger and activist, and five other Azeri activists who were arrested on their way to an International Day against Torture ceremony in June 2013 and subsequently detained.

Local and international human rights groups alleged serious economic, legal, and cultural discrimination during the year against the predominantly Sunni ethnic Baluchi minority, estimated to be between 1.5 and two million persons. Areas with large Baluchi populations were severely underdeveloped and had limited access to education, employment, health care, and housing. The Gozinesh (selection) procedure limited Sunni Baluchis’ employment opportunities and political participation and caused them to be underrepresented in government positions. Baluchi journalists and human rights activists faced arbitrary arrest, physical abuse, and unfair trials.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

The law criminalizes consensual same-sex sexual activity, which is punishable by death, flogging, or a lesser punishment. The law does not prohibit discrimination based on sexual orientation and gender identity. Security forces harassed, arrested, and detained individuals they suspected of being gay. In some cases security forces raided houses and monitored internet sites for information on LGBT persons. Those accused of sodomy often faced summary trials, and evidentiary standards were not always met. Punishment for same-sex sexual activity between men was more severe than for such conduct between women.

The government censored all materials related to LGBT issues. There were active, unregistered LGBT NGOs in the country, but most activities to support the LGBT community took place outside the country. Antidiscrimination laws do not exist.

Hate crime laws or other criminal justice mechanisms do not exist to aid in the prosecution of bias-motivated crimes against members of the LGBT community. International LGBT NGOs reported that many young gay men faced harassment and abuse from family members, religious figures, school leaders, and community elders. Some persons were reportedly expelled from university for alleged same-sex sexual activity.

Fifteen of 24 LGBT individuals interviewed by the UN special rapporteur for his February 2013 report stated they had been arrested at least once for their sexual orientation or association with other LGBT individuals. Thirteen interviewees claimed that security officers subjected them to torture or physical abuse in detention, including punches, kicks, baton strikes, sexual assault, or rape. Many reported that family members beat them at home but feared reporting those assaults to authorities because they might themselves be charged with a criminal act.

The law defines transgender persons as mentally ill, and the government provided transgender persons financial assistance in the form of grants of up to 4.5 million tomans (\$1,660) and loans up to 5.5 million tomans (\$2,030) to undergo gender-confirmation surgery. In addition, the Ministry of Cooperatives, Labor, and Social Welfare requires health insurers to cover the cost of gender-confirmation surgery. Individuals who underwent gender-confirmation surgery may petition a court for new identity documents with corrected gender data, which the government reportedly provided efficiently and transparently. Human rights activists and NGOs reported that some LGBT persons were advised to undergo gender-confirmation surgery to avoid legal and social consequences due to their gender-identity ambiguity.

HIV and AIDS Social Stigma

Despite government programs to treat and provide financial and other assistance to persons with HIV/AIDS, international news sources and organizations reported that individuals known to be infected with HIV/AIDS faced widespread societal discrimination, including in schools and workplaces.

Other Societal Violence or Discrimination

There was some societal discrimination on linguistic grounds against groups whose native language was not Persian and on religious grounds against non-Shia persons, whether Sunni Muslims, Christians, members of the Bahai Faith, and

other heterodox religions. The existence of such discrimination, largely at the individual level, was difficult to determine.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The constitution provides for freedom of association, but neither the constitution nor labor laws specify trade union rights. The law states that workers may establish an Islamic labor council or a guild at any workplace, but the rights and responsibilities of these organizations fall significantly short of international standards for trade unions. In workplaces where an Islamic labor council has been established, no other form of worker representation is permitted. The law requires prior authorization for organizing and concluding collective agreements, and it does not provide for the right to strike. Strikes are prohibited in all sectors, although private-sector workers may conduct “peaceful” campaigns within the workplace. The law does not apply to establishments with fewer than five employees.

Freedom of association and the right to collective bargaining were not respected, and violations occurred. The government did not effectively enforce applicable laws. The government severely restricted freedom of association and interfered in worker attempts to organize. Antiunion discrimination occurred, as the government imprisoned, harassed, and restricted the activities of labor activists. The law does not prohibit antiunion discrimination and does not require reinstatement of workers fired for union activity.

The Interior Ministry, the Ministry of Labor, and the Islamic Information Organization determined labor councils’ constitutions, operational rules, and election procedures. Administrative and judicial procedures were lengthy, and worker appeals to these bodies, when permitted, were subject to lengthy delays. Workers’ House remained the only officially authorized national labor organization. Workers’ House leadership oversaw and coordinated activities with Islamic labor councils in industrial, agricultural, and service organizations with more than 35 employees. During the year the government pressured workers to join the government-sponsored councils. According to the ICHRI, the labor councils, which consisted of representatives of workers and a representative of management, were essentially management-run unions that undermined workers’ efforts to maintain independent unions. Nonetheless, the councils were sometimes able to block layoffs and dismissals. Human rights organizations reported that

employers routinely fired labor activists for trade union activities. There was no representative workers' organization for noncitizen workers.

Freedom of association was not respected. According to international media reports, security forces continued to respond to workers' attempts to organize or conduct strikes with arbitrary arrests and violence. Strikes and worker protests often prompted a heavy police response, and security forces routinely monitored major worksites. In May mine workers began a strike against plans to privatize their workplace. Nine workers were arrested, and warrants were issued against nine others. In August a new round of strikes started to protest the arrests. As a concession, the government offered strikers bail orders for the release of eight of the arrested strikers. As of October the families had not made payments on the bail orders. The families contended that the workers did not commit a crime that justified the need to pay bail.

There were developments in cases from previous years. Five members of the Coordinating Committee to Help Form Workers Organizations--Jamal Minashiri, Hadi Tanomand, Ghasem Mostaphapour, Mohammad Karimi, and Ebrahim Mostaphapour--were tried by a Bukan court on charges of "acting against national security." Jamal Minashiri and Hadi Tanomand were sentenced to three-and-a-half years in prison; Ghasem Mostaphapour, Mohammad Karimi, and Ebrahim Mostaphapour were sentenced to two years in prison.

Reza Shahabi continued serving a six-year sentence imposed in 2012 for "spreading propaganda against the system" and "gathering and colluding against state security" in connection with his union activities. He appeared to have received a three-month medical furlough in October following spinal surgery. Authorities released Kurdish labor activist and coordinating committee member Pedram Nasrollahi from prison after he completed his 19-month sentence for attempting to form a union in 2012.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor, but the government did not effectively enforce the law. Conditions indicative of forced labor sometimes occurred in the construction, domestic labor, and agricultural sectors, primarily among adult Afghan men. Family members and others forced children to work. The government made no significant effort to address forced labor during the year.

See also the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits employment of minors under the age of 15 and places restrictions on employment of minors under the age of 18, such as prohibiting hard labor or night work. The law does not apply to domestic labor and permits children to work in agriculture and some small businesses from the age of 12. The government did not adequately monitor or enforce laws pertaining to child labor, and child labor remained a serious problem.

Reportedly there were significant numbers of children, especially of Afghan descent, working as street vendors in major urban areas. Child labor was also reportedly used in the production of carpets. Children also worked as beggars, and there were reports that some children were forced into begging rings.

d. Discrimination with Respect to Employment or Occupation.

The constitution bars discrimination based on race, gender, disability, language, and social status "in conformity with Islamic criteria," but the government did not effectively enforce these prohibitions. The constitution does not bar discrimination based on sex, sexual orientation, or gender identity.

There were systematic efforts by the government to limit women's access to the workplace. In July male managers in the Tehran city government were barred from employing female secretaries or office managers. In August a policy prohibiting women's employment in coffee shops, coffee houses, and traditional restaurants was announced. In September the local press reported that bands with female musicians would not be granted performance licenses. The performance ban would extend to the entire country a prohibition that had been in place in a few cities.

Discrimination occurred based on the above categories with respect to employment and occupation (see also section 6).

e. Acceptable Conditions of Work

According to the Cooperatives, Labor, and Welfare Ministry, the minimum wage is 608,900 tomans (\$225) per month. This figure does not include supplemental

allowances for housing, groceries, and child benefits. While the minimum wage represented a 25 percent increase over 2013, it did not keep pace with inflation, which was estimated at 35 percent for the same time period. Domestic labor organizations published reports stating that workers' purchasing power eroded during the past few years, as yearly minimum wage increases have not kept pace with inflation since 2011. Statistics Center of Iran head Adel Azar estimated the poverty line to be 13,312 tomans (five dollars) per day in a June press interview. Labor representatives and some economists believed the actual poverty line to be significantly higher--closer to 80,000 tomans (\$30 per day--due to the cost of goods in the country.

The law establishes a maximum six-day, 48-hour workweek with a weekly rest day (normally Friday), at least 12 days of paid annual leave, and several paid public holidays. Any hours worked above that amount entitles a worker to overtime. The law mandates a payment of 40 percent above the hourly wage to employees for any accrued overtime. The law provides that overtime work is not compulsory. The law does not cover workers in workplaces with fewer than 10 workers, nor does it apply to noncitizens.

Many workers in the country continued to be employed on temporary contracts under which they lacked many protections available to full-time, noncontracted workers and could also be dismissed at any time without cause. Large numbers of workers employed in small workplaces or in the informal economy similarly lacked basic protections. Low wages, nonpayment of wages, and lack of job security due to contracting practices continued to be major drivers of strikes and protests.

Employers sometimes subjected migrant workers, most often Afghans, to abusive working conditions, including below-minimum wages, nonpayment of wages, compulsory overtime, and summary deportation without access to food, water, or sanitation facilities during the deportation process. Informal employment of migrants was common in construction, agriculture, transportation, retail, and the textile sectors.

There was little specific information available regarding labor inspection and labor law enforcement. While the law provides for occupational health and safety standards, the government sometimes did not enforce these standards in the formal and informal sectors. Labor organizations inside and outside the country alleged that hazardous work environments resulted in thousands of worker deaths annually. The news site *Roozonline* reported there were no legal, active independent labor

associations, thus making organized movements difficult. The security services sometimes intervened in worker strikes. According to the ICHRI, in January security forces arrested more than 20 workers at Chadormalu Mine in Yazd Province, including the head of the labor union, after they stopped work during a contract negotiation dispute.

Workers do not have the right to remove themselves from situations that endangered their health or safety without jeopardizing their employment. In April 2013 the foreign NGO Sudwind reported that, according to medical examiner reports, an average of five workers died per day from work-related accidents. In December the Iranian Labor News Agency reported an increase of over 3.5 percent, compared with 2013, in the number of deaths caused by on-the-job accidents in Tehran. It was unclear whether the government took significant actions during the year to prevent violations or improve working conditions.